in *Ramlila Maidan Incident* case[5] (2012), the court observed that a common thread runs through Parts III, IV and IVA of the constitution. One Part enumerates the fundamental rights, the second declares the fundamental principles of governance and the third lays down the fundamental duties of the citizens. While interpreting any of these provisions, it shall always be advisable to examine the scope and impact of such interpretation on all the three constitutional aspects emerging from these Parts.

5. They are enforceable by law. Hence, the Parliament can provide for the imposition of appropriate penalty or punishment for failure to fulfil any of them.

H.R. Gokhale, the then Law Minister, gave the following reason for incorporating the fundamental duties in the Constitution after twenty-six years of its inauguration: 'In post-independent India, particularly on the eve of emergency in June 1975, a section of the people showed no anxiety to fulfil their fundamental obligations of respecting the established legal order ..... the provisions of chapter on fundamental duties would have a sobering effect on these restless spirits who have had a host of anti-national subversive and unconstitutional agitations in the past'.

Indira Gandhi, the then Prime Minister, justified the inclusion of fundamental duties in the Constitution and argued that their inclusion would help to strengthen democracy. She said, 'the moral value of fundamental duties would be not to smoother rights but to establish a democratic balance by making the people conscious of their duties equally as they are conscious of their rights'.

The Opposition in the Parliament strongly opposed the inclusion of fundamental duties in the Constitution by the Congress government. However, the new Janata Government headed by Morarji Desai in the post-emergency period did not annul the Fundamental Duties. Notably, the new government sought to undo many changes introduced in the Constitution by the 42nd Amendment Act (1976) through the 43rd Amendment Act (1977) and the 44th Amendment Act (1978). This shows that there was an eventual consensus on the necessity and desirability of including the Fundamental Duties in the Constitution. This is more clear with the addition of one more Fundamental Duty in 2002 by the 86th Amendment Act.

VERMA COMMITTEE OBSERVATIONS

The Verma Committee on Fundamental Duties of the Citizens (1999) identified the existence of legal provisions for the implementation of some of the Fundamental Duties. They are mentioned below:

1. The Prevention of Insults to National Honour Act (1971) prevents disrespect to the Constitution of India, the National Flag and the National Anthem.

2. The various criminal laws in force provide for punishments for encouraging enmity between different sections of people on grounds of language, race, place of birth, religion and so on.

3. The Protection of Civil Rights Act[6] (1955) provides for punishments for offences related to caste and religion.

4. The Indian Penal Code (IPC) declares the imputations and assertions prejudicial to national integration as punishable offences.

5. The Unlawful Activities (Prevention) Act of 1967 provides for the declaration of a communal organisation as an unlawful association.